Yanovskiy Moshe

Welfare state war on Family and Free Society Decline

Abstract: *The institution of marriage and family, rooted in Judeo-Christian values and perpetuated through generations, provides a unique foundation for cooperation, mutual trust, and the cultivation of law-abiding, educated individuals and a skilled workforce. These institutions play a pivotal role in shaping the social fabric and fostering Civil Society.*

Government interventions into intra-family affairs have emerged as a significant factor in the contemporary family crisis observed in developed countries, characterized by declining marriage rates, increasing divorce rates, and lower birth rates. To empirically examine this hypothesis, we conducted a statistical analysis spanning from 1800 to 2010, utilizing data from 17 established democracies.

Our findings indicate that mandatory pension insurance may contribute to a decline in fertility rates, with a lag of 40 years. Additionally, legislation promoting high levels of female employment and implementing no-fault divorce rules are identified as supplementary factors exacerbating the rise in divorce rates and the decline in birth rates. Moreover, the application of the concept of "the best interests of the child" has inadvertently encouraged children to challenge parental authority, further diminishing the "demand" for children and exacerbating the decline in birth rates.

This effect is attributed to the expansion of the welfare state, which assumes traditional male roles and parental responsibilities, thereby undermining family sustainability.

The text represents update of the original version of article "Does Government crowd out the Family?" published in 2023 by Derecho y religión, .No 18, 2023 (Issue dedicated to: Perspectiva de género y libertad religiosa; article in English), pp. 123-140[1].

JEL Classifications: D72, J71, K36, N40

Keywords: family crisis, mandatory pension insurance, best interests of the child, universal suffrage, nanny state

[1] https://derechoyreligion.com/producto/dyr18-rethinking-the-gender-perspective-according-to-the-free-thought-moshe-yanovskiy/

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INTRODUCTION

The crisis affecting the traditional family as an institution became increasingly apparent by the end of the 1970s.

In the context of this article, the "traditional" family within old democracies can be defined as a values-based voluntary union between one man and typically one woman, dedicated to childbirth and child-rearing, thereby fostering an environment akin to an infinitely repeated game. Rooted in Sinai Revelations' values and the Judeo-Christian tradition, this union sanctifies an asymmetric division of labor and responsibilities, aiming to create optimal conditions for both spouses and to provide the best feasible environment for children's socialization, primarily through parental role modeling.

The unfolding crisis is marked by a proliferation of divorces, with nearly half of new marriages ending in dissolution, an increasing prevalence of single-parent households, and a downward trajectory in birth rates, falling significantly below the threshold necessary for the natural reproduction of a cooperative, civic-minded, highly skilled, and law-abiding populace (Lerman, Wilcox, 2014). Consequently, the sustainability of new marriages is increasingly called into question.

The trend toward governmental assumption of familial roles, akin to Milton Friedman's warnings against the adoption of certain modern Western institutions by underdeveloped countries, is a concerning development. Deepak Lal (1998) particularly emphasizes the perilous implications of the "nanny state" for market-friendly institutions and casts doubt on the sustainability of modern Western family structures (Lal, 1998; p.102). This phenomenon of governmental intrusion into family affairs is not unprecedented, as evidenced by historical examples such as the Ottoman janissaries' institution, which enforced "the best interests of Christian boys," among others.

The foundation of Judeo-Christian values and the family institution, perpetuated by these values, provides a unique platform for fostering cooperation and mutual trust (Shulgin, Yanovskiy, 2011). Rooted in universal moral principles derived from the Sinai Revelation and bolstered by strong and vibrant familial-marital institutions, this framework poses a formidable challenge to unlimited governmental authority (Tocqueville, 1838, p. 309).

The modern rise of the "child's best interests" approach, along with a corresponding approach to family values, can be traced back to the Communist

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Manifesto. Following the Bolsheviks' rise to power in 1917, the communists in Russia dismantled the concept of parental authority inherent in family law under the Russian Empire. Emphasizing the predominant role of the State, they asserted that decisions made by the State were inherently "in the best interests of the child." The 1918 Civil Code codified this stance, stipulating that parental rights were contingent upon the child's interests, and courts were empowered to strip parents of these rights in cases of misconduct. During the totalitarian rule of the USSR, court rulings served as little more than a facade, with governmental executives exercising total control over familial matters.

Thus, the modern Welfare State's assertion of protecting spouses from one another and children from their parents follows a longstanding pattern. Despite the Convention on the Rights of the Child (CRC) adopted on 20 November 1989, which does not explicitly safeguard children from government intervention, Article 9 of the CRC allows governments to remove children from their families "in the best interests of the child."[2] Although the United States has not ratified the Convention, many state legislatures, such as California, have granted similar powers to state authorities. Notably, the Washington state legislature recently passed bill SB 5599, empowering the state to remove children from families if parents refuse consent for their child's "gender transition" or abortion.[3]

Given these developments, it is pertinent to assess the efficacy of welfare state bureaucracy in preserving the reproduction of a well-educated, skilled, and law-abiding population.

I. THE PROBLEM

1.1. Demographic Transition, Crisis, and Incentives for Marriage and Childbearing

The process of urbanization temporarily weakened social bonds following the decline of original village communities but before their reestablishment in urban settings. Instances of neglect toward elderly parents and other challenges were prevalent

[2] https://ihl-databases.icrc.org/en/ihl-treaties/crc-1989. Accessed April, 25 2023.
[3] https://app.leg.wa.gov/billsummary?Year=2023&BillNumber=5599 Accessed April, 25 2023.

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among the poorest classes, serving as early justifications for governmental intervention. Mandatory pension insurance was envisioned as a remedy for this situation (Rowntree, 1901). Similar reasoning may be applied to measures aimed at increasing female employment, which were seen as necessary responses to the challenges exacerbated by world wars.

Current literature identifies several incentives for individuals to have children:

One motivator is the anticipation of needing care in old age, leading individuals to establish families and have children for expected intergenerational, intra-familial support (Caldwell, 1981). Before the advent of modern economic growth and improvements in sanitation and medicine, high rates of infant mortality prompted parents to have more children as a means of compensating for losses (Turke, 1989; Morgan and Taylor, 2006; Caldwell, 2004).

Another significant incentive is rooted in moral values. Becker and Barro emphasize the role of altruism in parental care (Becker, 1974; Barro, 1974; Becker and Barro, 1986; Becker, 1993). Caldwell argues that traditional moral values have become outdated and that modern values do not align with traditional family structures (Caldwell, 1982, p. 21; Caldwell and Schindlmayr, 2003, [4] p. 243). According to Caldwell, the proper definition of land-inheritance procedures is crucial for sustaining agricultural production, explaining why fidelity in marriage is emphasized in world religions in a manner akin to the Marxist approach (Caldwell, 2004, p. 298).

From Caldwell's perspective, it can be inferred that the owner of assets in a modern hi-tech startup (predominantly male: Verheul and Thurik, 2001; Ahuja et al., 2004; Mitchell, 2011) may not be concerned about leaving his wealth to his own biological child. Consequently, such individuals may be indifferent to marital infidelity on the part of their spouses. However, Caldwell's reduction of family morality—traditionally based on the law of Moses—exclusively to women's behavior raises significant questions. [5]

[4]Low fertility observable: “reassure the young about the social acceptability of deferring … births” (Caldwell and Schindlmayr 2003, 243); success as alternative goal to the family (ibid., 244).

[5] Punishment of the woman is impossible without punishing her male partner; but the reverse situation is possible in the case of rape when the victim could not call for help. The list of prohibited actions is vast and cannot be reduced to the situation described by Caldwell.

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Marital fidelity is not merely an ancient relic; it's the norm among freemen in cultures influenced by the Sinai Revelation. Historically, serfdom granted even stationary bandits the legal privilege to access dependent men's wives. For instance, the ancient practice of "jus primae noctis" (the first night right) persisted in Russia until serfdom's abolition in 1861, as noted by Ivan Turgenev. Guarantees of personal freedom and private property—modern concepts—were privileges enjoyed by elites in select European countries as early as the seventeenth and eighteenth centuries. Therefore, the family economic model, dismissed as "outdated" by Caldwell, is actually a relatively recent development inherent in societies with institutions friendly to private property.

Caldwell's historical narrative suggests that the "obsolete" law of Moses can be effortlessly replaced by modern values, inspired by archaic norms rooted in cultures of personal dependence. In this new cultural paradigm, the "caring" welfare state takes the place of God, while academicians, politicians, and bureaucrats assume the roles of prophets. We will later explore the success of these substitutions and the factors enabling them. For now, it's worth noting that these substitutions transform the entire system of relationships from an infinite-time game—where altruism and rationality coexist harmoniously—to a finite-period game, where altruistic "game strategies" inevitably fail.

In modern history, two strategies of childbearing emerge. The first is rooted in the traditional division of labor and strong spousal cooperation. The second blurs the father's role, with the mother either under the control of tribal leaders (Tiger, 2000) or "married to the state" (Lott and Kenny, 1999).

Caldwell views the paternalist strategy as natural, attributing declines in fertility during the 1980s and 1990s to a "liberalizing global economy," which purportedly increased economic individual insecurity (Caldwell and Schindlmayr, 2003). However, this assumption lacks empirical support and historical precedent. For instance, in the Soviet bloc during the 1960s, despite a sense of relatively high individual security, fertility sharply declined, contradicting Caldwell's hypothesis. Paternalist strategies of childbearing are as ancient and widespread as individualist strategies, underscoring the complexity of fertility dynamics.

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Caldwell also attributes relatively high fertility rates in the US to elevated fertility among immigrants from Latin America[6] (Caldwell and Schindlmayr, 2003, p. 243).

Recent studies detailing the increase in marriage and fertility rates in developed countries over the past decade (Ohlsson-Wijk, 2011; Holland, 2013) often fail to explicitly address the roles of immigrants and low-income classes. Immigrants are often incentivized to have children by the benefits they receive, such as the right to naturalization, allowances, discounts, and other forms of support. Similarly, for low-income populations, child allowances serve as significant incentives for childbearing, often prompting earlier childbearing.

Caldwell and his adherents frequently attribute the demographic transition and subsequent decline in fertility to several factors: the disappearance of the infant-mortality-compensation mechanism and the prolonged "return-of-investment" period for children due to increasing trends in higher education (Caldwell, 1982).[7] Additionally, the drastic changes in living conditions brought about by urbanization are often cited as causes of the demographic transition (Stark, 1981). However, this explanation is deemed inadequate, as by the 1960s, the momentum of this mechanism for breaking traditional ties had waned. Instead, we might have expected the establishment of new ties in the urban environment post-WWII, potentially contributing to the resurgence of the family as a social institution. Contrary to expectations, this did not occur, as new values played a significant role. Opting for a career over family has become a new moral norm (Caldwell and Schindlmayr, 2003, p. 257).

Another commonly cited explanation for the declining incentive to marry is the rise of female employment, which reduces the scope for labor division within the family (Becker, 1973; Caldwell, 2004). However, we propose a more nuanced explanation. In a context of weakening family values, female employment reflects growing uncertainty about women's roles within the family. Similarly, uncertainty about men's willingness to assume responsibility under evolving conditions, to act as breadwinners, prompts women to seek protection from the state (Lott and Kenny, 1999).

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[6] “There are problems in comparing the USA with Europe in that its higher fertility is partly a reflection of immigrant Hispanic reproductive behavior.”

[7] Author goes further and states that “invariably educated children cost more and give less” (Caldwell, 1982, 21). We doubt that, since modern individualistic education is probably less concerned with family values and helping the elderly.

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G. Becker (Becker, 1992) explored the incentives influencing prospective parents' desire for children. He identified factors such as divorces and women's increasing economic independence through greater participation in the labor force as contributors to declining fertility rates. Becker also noted the potential reduction in fertility resulting from a more generous social security system or increased government debt, linking governmental intervention in private affairs to both a decrease in the demand for children (as a traditional form of pension saving) and the destabilization of governmental finances during peacetime.

E. Spolaore and R. Vacziarg (Spolaore, Vacziarg, 2021) constructed a demographic dataset covering European nations from 1830 to 1970 to analyze factors driving demographic transitions. Their findings typically highlight higher education, lower infant mortality, increased urbanization, and cultural influences (such as French influence) as key determinants of fertility decline. However, their analysis notably overlooks institutional factors, such as legislation and enforcement practices, in their otherwise high-quality research. The extensive scope of governmental intervention in family life—ranging from compulsory pension saving to divorce regulation and women and child 'protection'—is conspicuously absent from their analysis.

The historical experience of Western European countries from the 17th to the 19th centuries demonstrated a strong demand for family and the resilience of marriage and family institutions over the long term. By the mid-17th century, private property in Western Europe had become relatively well-secured, leading to increased incentives for expanding the labor supply, including the participation of women and teenagers in the workforce. This undermined the traditional division of labor between husbands and wives and weakened familial bonds. However, by the 19th century, as the Industrial Revolution restored men's capacity to be the primary breadwinners, women began to return home and voluntarily embraced the traditional role of housekeeper (de Vries, 2008).

Adam Smith (1776) elucidated how the division of labor contributes to economic prosperity, emphasizing the concept of absolute advantages among partners that create opportunities for mutually beneficial contracts. Similarly, David Ricardo (Ricardo, 1821) demonstrated how even comparative advantages can lead to mutually beneficial divisions of labor. Consider the hypothetical scenario where feminists not only

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succeeded politically but also intellectually in their cause against Lawrence Summers. In this scenario, women outperform men in all aspects, including, of course, their ability to give birth.

The unique ability of women to give birth creates relative advantages for men and facilitates a division of labor between the sexes. Considering the substantial body of evidence demonstrating the asymmetrical distribution of abilities between genders, including intellectual capabilities—such as achievements in mathematics, participation, and accolades in prestigious competitions like the International Mathematical Olympiads, and the modern history of chess—the bona-fide economists must heil the considerable benefits of a more traditional division of labor, both within families and in society.

1.2. How Government addresses Challenges

1.2.1. Taking the depopulation challenge: to address – or to ignore and claim success

During the 1950s and 1960s, many elderly individuals began living relatively independently from their children, resulting in weakened family bonds.[8] In previous times, children aided their parents out of love or duty, but now, they contributed to the support of others' parents out of compulsion and fear. While earlier transfers strengthened familial ties, compulsory transfers weakened them (Friedman and Friedman, 1980, p. 106).

During the interwar period, as fertility declines became evident in developed countries, governments sought to address this challenge. Governments typically respond to such challenges with increased redistribution (Niskanen, 1974). In Denmark, the Population Commission was established before the German occupation in 1935 due to concerns about population decline dating back to the 1870s. The 1937 report of the

[8] A.V. Dicey points out, there was a fundamental difference. The pension was regarded as a right whose receipt, in the words of the act, "shall not deprive the pensioner of any franchise, right or privilege, or subject him to any disability." It shows how far we have come from that modest beginning that Dicey, commenting on the active years after its enactment, could write, "Surely a sensible and a benevolent man may well ask himself whether England as a whole will gain by enacting that the receipt of poor relief, in the shape of a pension, shall be consistent with the pensioner's retaining the right to join in the election of a Member of Parliament." It would take a modern Diogenes with a powerful lamp to find anyone today who could vote if receipt of government largesse were a disqualification.

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commission reflects on the societal apprehension regarding the financial burden associated with raising children. It suggests that if the economic burden of childbirth were shifted from individual families to the community, the desire to have children—or to have more children—would increase. The report outlines a comprehensive system of support for young families and families with school-aged children, encompassing financial assistance, healthcare, and housing provisions. While acknowledging room for improvement in both the scale and implementation quality of the program, drawing from the experiences of Sweden, the report does not delve into the program's impact on reproductive health (see Gille, 1952, pp. 173–174).

The natural (purported) aim of a welfare state, as defined by Caldwell and Schindlmayr (2003), appears to be the creation of a sense of "individual security." However, within the context of individual security, the post-World War II baby boom could be easily attributed to the contrast between the anticipated peace and the preceding horrors of the war, fostering a pervasive feeling of security among individuals.

Larson (1952) unequivocally reported on the success of family support implementation in Sweden, citing record-breaking birth rates (baby boom) since 1945. Larson expressed optimism regarding the sustainability of this trend, particularly as the baby boom was achieved without relying on migrants, known for their high fertility rates.

Despite claims of success by welfare states, skepticism remains warranted, as the enduring effects of welfare policies remain uncertain. The most sustained positive dynamics in post-World War II birth rates can be attributed to the baby boom, which significantly impacted demographic trends, rather than welfare state initiatives (Andersson, 2004; see also Figure 1 for data spanning 1970–2000 in Denmark, Norway, Sweden).

The impact of increased fertility on societal expenses and the civic capital that supports growth-friendly institutions remains unclear. However, the focus should be on implementing long-term growth-promoting policies rather than merely manipulating birth timing, which only leads to temporary spikes in fertility (Štastná and Sobotka, 2009). Moreover, fertility incentives should be directed towards families committed to nurturing law-abiding, socially active children, who inherently invest substantially more in their offspring than any reasonable child allowance.

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Prudent policies should avoid incentivizing migrant inflows, as providing child allowances to migrants could exacerbate economic and ethical issues rather than effectively addressing demographic concerns (Azarnert, 2010). Kalwij (2010) argues for the positive impact of family policy on fertility decisions, citing European statistics from 1980 to 2003. However, in Table 6 (2010, p. 513), "Low level of education" appears to be a stronger predictor of the "Probability of giving Birth" than "Maternity and Parental-Leave benefits," suggesting that parental leave primarily encourages childbirth among the less-educated population.

Gauthier and Hatzius (1997) demonstrate a positive correlation between family benefits and fertility rates in several countries, primarily Scandinavian ones. In these analyses, females' wages tend to have less significance compared to benefits, while males' wages show no significant impact at all. Setting aside the discussion on the relative incentives for childbearing across different income groups, it appears evident that in certain countries, the government has notably succeeded in supplanting the father as the primary breadwinner of the family. Consequently, the observed effect is likely to have stemmed from families with fewer resources, where parental social success is impeded by economic constraints.

On the contrary, the experience in the United States from 1979 to 1988 indicates that welfare benefits have an insignificant impact on a young mother's decision to have a second child (Acs, 1996). This finding is reasonably explicable: to have multiple children without a husband, one would typically rely on welfare support, potentially diminishing the level of time and financial investment in the children. Neyer and Andersson (2008) reach similar conclusions in their analysis of Swedish data, although they assert the difficulty in isolating the effect of child allowances on fertility due to numerous confounding factors.

Goldstein, Sobotka, and Jasilioniene (2009) examine countries where fertility rates dropped to levels insufficient to maintain stable population sizes, focusing on data from the late 1980s. They observe a sharp decline in fertility around 1990–1995, followed by a partial recovery. The authors posit that this sharp decline could be attributed to delayed childbirth. However, the feasibility of testing such a hypothesis over a 15–20-year interval remains questionable. Even tracking the gradual diminishment of effects stemming from the post-war baby boom over such a short period poses challenges.

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In our study, we utilize a more readily documented and straightforward indicator than fertility rates—namely, the birth rate (births per year per 1,000 population).

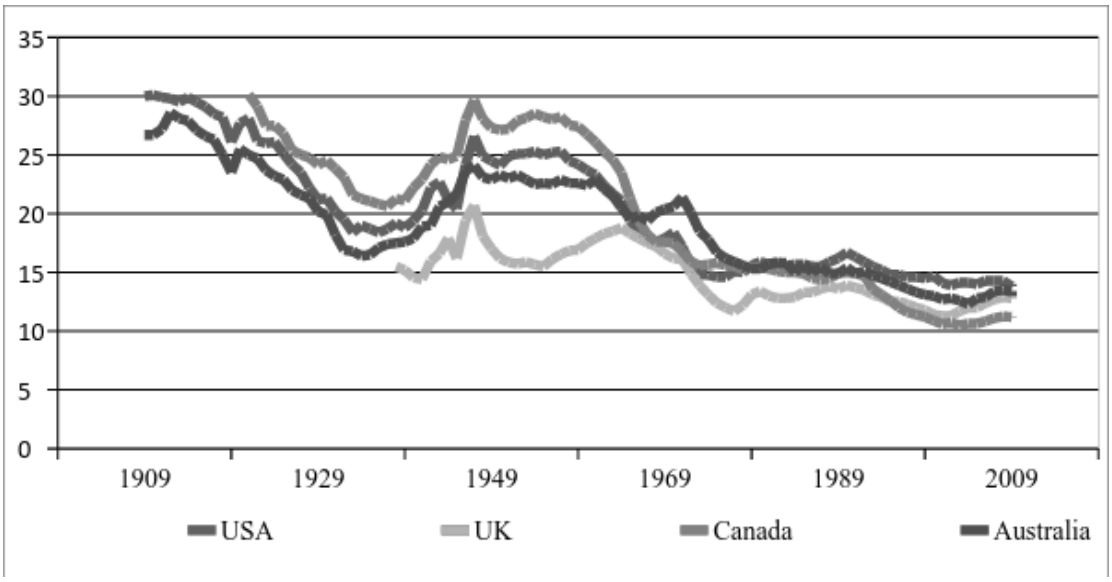

Figure 1. Birth rate dynamics for USA, UK, Canada, and Australia. *Source*: national census data, Mitchell, 2011.

Figures 1 and 2 clearly illustrate a long-term negative trend. While Figure 1 indicates a stabilization in later years, this does not alter the overarching pattern. The slight growth observed in Sweden since 2000 is primarily attributable to immigrants, whose birth rates are anticipated to decrease over time.

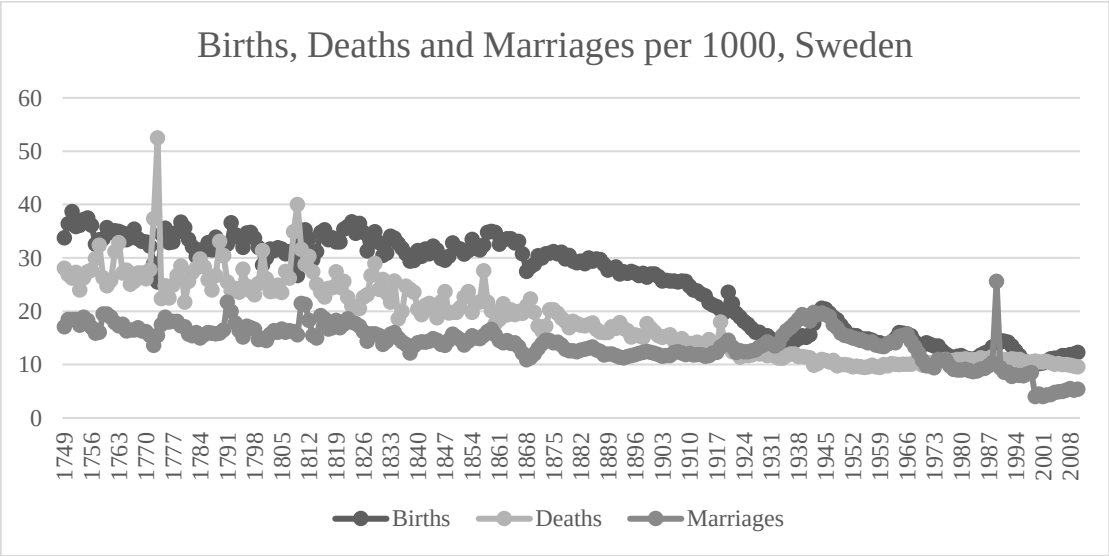

Figure 2. Source: Mitchell, 2011

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The studies mentioned above, along with others (Ohlsson-Wijk 2011, 2014; Holland 2013), document fertility growth in developed countries over the past decade. However, none of these studies explore the roles of immigrants and underprivileged citizens. Both groups may find incentives for increased fertility in childbearing benefits and child allowances. We specifically refer to immigrants from less developed countries, as welfare dependence tends to be more prevalent among them (Blume and Verner 2007).

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Experiments conducted by certain countries to boost fertility through increased spending appear ineffective, particularly when considering the significant unintended consequences of such programs. One crucial effect is on the integration of young individuals into society and the labor market. A nuclear family with moderate income enhances a child's prospects of receiving a quality education and acquiring civic skills, thereby benefiting society. Additionally, a nuclear family structure helps alleviate poverty (Heritage 2012). However, when childbearing is primarily motivated by obtaining child allowances, the likelihood of such positive outcomes diminishes.

Regarding government initiatives aimed at supporting the elderly, women, and children, we raise moral concerns, particularly regarding the assumption that bureaucracies possess the omniscience required to determine the best interests of these demographic groups. The incentives for bureaucrats to genuinely care for these individuals are no greater than those of family members, friends, or local communities.

It's also pertinent to recall that the family institution and civil society, built upon familial foundations, have historically played crucial roles in providing various public goods such as healthcare and education through charitable endeavors, voluntary efforts, and non-profit insurance. These institutions effectively addressed poverty issues, helping the most vulnerable individuals regain their socioeconomic standing and become contributors to society (Olasky, 1992). Consequently, these institutions have often been viewed as natural competitors to the welfare state and have even been deliberately targeted as threats in some cases (Green, 1993).

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1.2.2. Quality over Quantity?

The active involvement of the state in family affairs is often justified by the argument that a decrease in the quantity of efficient breadwinners could be offset by the improved quality of human capital resulting from increased investment in children (Lee and Mason 2010). However, we contend that the quality of human capital is strongly linked to (and indeed, caused by) the nuclear family: the sharing of parental experiences, enhanced socialization through family interactions, and higher average incomes.

In our review of existing literature, we found no data or evidence suggesting that couples with fewer children invest more in each child. While having a larger share of dwelling space may benefit an only child, it does not constitute an investment.

Modern family dynamics are marked by high divorce rates, extramarital births, and single-parent households. Single-parent families often struggle to establish behavioral patterns conducive to nurturing family relationships. The sole parent may find it challenging to show her child the way to success in education and earning potential, as the "follow me" educational approach, crucial for a child's upbringing, is seldom feasible in such circumstances. It appears that the decision to have children, as an alternative to pursuing leisure, consumption, or career opportunities, represents a genuine modern trade-off (Caldwell 2004, 306). This real choice is hardly reconcilable with the concept of a quantity-quality trade-off, which presupposes prioritizing the child's interests.

People reveal their preferences regarding education[9] — whether to rely on affordable "specialists" such as teachers and social workers, or on themselves. While the reliance on "specialists" is widespread, it does not necessarily indicate parents' willingness to invest in their child's human capital. This holds especially true if they do not expect assistance from their children in their later years.

It seems reasonable to assume that the primary determinant of education is not the extent of educational investment, but rather parents' attention (Gould, Simhon, Weinberg, 2020), school choice, and educational standards set by the parents based on

[9]By school choice or abstaining from such choice, voting for socialist parties or for parties of limited government and individual responsibility. Stable and large families within middle or high classes tend to be more conservative.

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their own educational achievements (Sutin et al, 2017; Davis-Kean, Tighe, Waters, 2021) and expectations. These factors do not provide significant advantages to families with fewer children.

The qualitative superiority of the 'traditional' family, grounded in Sinai Revelations' universal moral values, is most evident in the following externalities:

-The transference of relational skills and the ability to uphold marriage and family institutions from parents to children.

-The capacity to establish robust civil society structures, rooted in family and religiosity, which now faces erosion while the family, sanctified by Judeo-Christian tradition, struggles to endure (Eberstadt, 2013).

The latter capability is demonstrated by a higher inclination towards charitable giving and voluntary civic engagement among religious, conservative individuals compared to their secular, 'progressive' counterparts. Family-oriented, religious conservatives not only surpass in the proportion of donations to their incomes (Paarlberg L., Nesbit R., Clerkin R., Christensen R., 2019; Brooks, 2006), but also exhibit a significant qualitative difference in their charitable practices.

Traditional charity, grounded in compassion, involves personal engagement with the unique hardships and issues faced by those in need, often coupling donations with volunteer efforts. Its aim is to empower recipients towards self-sufficiency and eventual transition to donors while fostering social reintegration (Olasky, 1992). Conversely, secular 'progressives' favor impersonal forms of giving, such as workplace donations or transactional contributions, lacking the personal involvement and long-term empowerment focus of traditional charity. This new pattern of giving often coincides with promoting aid-dependence rather than self-sustainability, under the premise that 'the rich' owe it to the 'poor' (ibid.).

The expanding Welfare state promotes both the secularist agenda of undermining parental authority (Gatto, 1991) and the displacement of civil society as the primary caretaker of social safety nets (Gruber, Hungerman, 2007; Folsom, 2009). Some scholars have illustrated how secularization contributes to the retreat (crowding out) of civil society (Iannacone, Frank, 2013; Eberstadt, 2013).

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1.3. More funds, more discretionary power

Bureaucrats within civil service agencies have a vested interest in expanding the population dependent on government funding. Framing care for such individuals as a noble cause is an easily marketable endeavor (Niskanen, 1971), providing justification for bolstered spending and authority. Thus, there exists a demand for voters who seek state protection (as exemplified by the "Life of Julia," a 2012 tool used in Barack Obama's campaign that targeted single mothers, highlighting how the issue of clientelism persists in modern democracies).

We have previously delineated two historical modes of interaction between the state and the family—whether acknowledging the primacy of family relations and privacy or not. The notion of a ruler (whether roving or stationary) encroaching upon the privacy of subjects has ancient roots, grounded in the belief that the ruler possesses a divine right to claim all property within their dominion, including women. This tradition finds biblical reference in the accounts of Sarah being taken for Pharaoh's harem (Genesis 12:15) and by Abimelech of Gerar (Genesis 20:2). Similarly, the concept of jus primae noctis embodies this tradition and its associated values. The notion of nationalizing women was explored in utopian literature such as Tommaso Campanella's "The City of the Sun" long before it found expression in the Communist Manifesto. The institution of the Janissaries, purportedly dating back to the Ottoman Turks, continues in some form to this day (e.g., in Somalia[10]). Thus, the traditions of communists and Nazis,[11] promoting absolute control over children and wives instead of men, have deep historical roots.

The introduction of universal suffrage marked a pivotal moment in the resurgence of governmental control over the privacy of subjects, effectively "nationalizing"

[10] Coalition to stop the use of child soldiers, 2004; 2008 https://web.archive.org/web/20120902053735/http://www.child-soldiers.org/user_uploads/pdf/globalreporttextweb7361911.pdf

[11] "The party is all-embracing. It rules our lives in all their breadth and depth. We must therefore develop branches of the party in which the whole of individual life will be reflected. Each activity and each need of the individual will thereby be regulated by the party as the representative of the general good. There will be no license, no free space, in which the individual belongs to himself … Why need we trouble to socialize banks and factories? We socialize human beings." Rausching Hermann 'Hitler speaks: A Series of Political Conversations with Adolf Hitler on His Real Aims' cited by http://aristotlethegeek.wordpress.com/2009/06/10/we-socialize-human-beings/

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families and children.[12] The implementation of universal suffrage created an electoral constituency for the leftist political faction.

Here we introduce the term "Left." In this context, the "Left" refers to political parties or leaders advocating for universal and compulsory "happiness" for all, often resorting to coercion to achieve this goal. Economically, the Left prioritizes the provision of mixed public goods over pure public goods.

W. Humboldt (1792) wrote: "A State, then, has one of two ends in view; it designed either to promote happiness or simply to prevent evil" So those politicians choosing "happiness promotion" instead of "just preventing evil" are defined as a "Lefts". Politicians who prioritize "happiness promotion" over merely preventing evil are categorized as "Left." These parties and leaders advocate for extensive government "care" and control "from the cradle to the grave," deriding the concept of a minimalist "night-watchman state" since Ferdinand Lassalle's time.

Frédéric Bastiat (1850) noted that these politicians, often referred to as "socialists," view humanity as raw material for their social experiments, assuming the role of Supreme Social Engineers. Some translations of his work "The Law" into English emphasize this observation by stating, "Socialists wish to play God."

The ethical norms of the Law of Moses ensured that each man or woman received recognition from society. Childbearing was esteemed, while abstaining from it was considered shameful. We believe that such intangible rewards should be factored into any economic analysis alongside material incentives and child allowances.

Critics like Carlson (1990) have rebuked Swedish experiments in marriage and family, which replaced personal responsibility with aggressive government-run social services, ultimately eroding the family institution. The success of the feminist-socialist utopia presented an appealing model for those averse to responsibility, weakening traditional safeguards of property in Sweden and facilitating government redistribution during peacetime.

Addressing similar incentives spurred by less comprehensive reforms in the US, Helen Smith (2014) compiled a compelling array of anecdotal evidence showcasing the fallout of reforms leading to a significant decline in men's interest in marriage, coining

[12] Historically, a short break in this trend happened in Europe and North America attributed to Catholic Church policies by Lal (1998) and to a general trend of liberalization by Mises (1951).

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the term "men on strike." Our analysis generally aligns with her findings, suggesting that the decline in marriage and birth rates can be attributed to a "strike" by men/parents in response to escalating governmental intervention. Social bureaucrats and politicians intrude into the nursery and spouses' bedrooms, substantially increasing risks and costs associated with establishing and maintaining a family, rendering it unfeasible for an increasing number of law-abiding citizens.

III. MODEL

Formally we could formally present our hypotheses as following expression:

Birth rate = a0 - a1 Government Pension Spending + a2Children Preference (1)

An economic agent can choose to allocate their after-tax income towards raising children or saving for the future. State-funded pensions partially replace this trade-off by providing a pension option in exchange for taxes, potentially leading some individuals to opt out of having children altogether.

Birth rate = a0 – a1Female Employment (2)

Female Employment = a0 + a1“Anti-discrimination” law& enforcement (3)

The decline in the birth rate can be attributed to increased female employment, which is influenced by the implementation of "anti-discrimination" laws aimed at artificially boosting female labor market participation and representation.

IV. DATA

The dataset comprises data from seventeen established democracies spanning from as early as 1820 to 2010. This extensive observation period allows for a comparison of institutions between taxpayer democracies and those with universal suffrage in most of the countries within the sample. By focusing on countries with similar political and institutional dynamics, we aim to ensure comparability. Given that the latest data reflects a significant influx of immigrants with cultural backgrounds less aligned with principles such as freedom, human rights, and the rule of law, including this data may introduce inconsistencies with earlier observations.

The selected variables for explaining the dynamics of birth and divorce rates are as follows:

- Mandatory pension insurance: Historically, this represented the initial stage of governmental intervention, followed by measures aimed at increasing female employment.

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- New institutional designs: These were specifically crafted to intervene in family matters, swiftly impacting the expected utility of marriage and, consequently, the likelihood of marriage and childbirth. Examples include the state's authority to act in the "best interests of the child," the introduction of "no-fault divorce," and the prioritization of women in disputes over custodial parental rights during divorce proceedings. Additionally, the legalization of marital rape represents an extreme form of governmental intrusion into intra-family private affairs. The shift from fault-based to no-fault divorce systems has been criticized for incentivizing irresponsible behavior among spouses and causing a decline in marriage rates, particularly among men.
- Political institutions: We aim to assess the influence of political parties that emerged during the advent of universal suffrage, as they played a pivotal role in implementing the aforementioned institutional reforms.
- Control variables: At this stage of the research, we include variables that are deemed undoubtedly significant. These include urbanization and child mortality rates. While these factors may explain fluctuations in birth rates during certain periods, they do not fully account for the substantial decline in birth rates observed among the middle class over the past 50 years. Therefore, we omit these variables from our analysis.
- Additional factors such as legal tradition, including whether a country follows Common Law or Civil Law, as well as cultural dominance by Catholicism or Protestantism, are considered for their potential impact on family dynamics.

For detailed descriptive statistics and data, please refer to the Reference materials.[13]

V. DATA ANALYSIS PRINCIPAL OUTCOMES

The chain of hypotheses tested statistically can be outlined as follows:

Universal suffrage led to increased electoral support for Big Government (Left) parties, as illustrated in Table 1. The rise of Left parties empowered the implementation of welfare state programs and legislation, including compulsory pension systems, no-fault divorces, and Equal Pay Acts/Equal Employment Opportunity Acts (EPA/EEO), among others. These interventions destabilized family and marriage institutions, resulting in a concurrent increase in divorce rates and decline in birth rates, coinciding with the rise of female workforce participation. Additionally, further expansion of the welfare state's

[13]Family Crisis: Reference Materials https://dx.doi.org/10.2139/ssrn.2450816

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involvement in intra-family matters led to legislation granting social (welfare) bureaucrats' authority to act in vaguely defined "best interests of the child" scenarios. Each of these government interventions significantly contributed to the decline in birth rates. For a detailed description of the hypotheses tested see the section Hypotheses in Reference Materials (Yanovskiy, Shestakov, Letunova, 2014 / May, 17 2023 update).

Tables 4, 5, and 6 demonstrate how the electoral support for Leftist parties corresponds with the adoption of various policies such as pension systems, EPA/EEO acts, and relaxed divorce procedures, all of which are associated with significant effects on birth and divorce rates. Particularly noteworthy is the influence of pension alternatives on birth rates, as indicated in Table 6. The observable decline in birth rates following the implementation of pension alternatives suggests a lag of 20 to 40 years, as detailed in Table 1 in the section "Stages of Government Regulation of Family and the Timeline of Attempts to Substitute Family Functions" in the Reference Materials.

Table 8.1 highlights the significant impact of EPA/EEO acts and no-fault divorce on women's participation in the labor force, while broken traditional (sex-based) labor divisions contribute to divorce rates (Table 9). Table 10 underscores the relationship between Left parties' electoral power and divorce rates, indicating a propensity for single women to vote for leftist parties, thereby facilitating a cycle wherein women may be encouraged to avoid marriage or seek early divorce, bolstering the electoral base of Big Government proponents.

Furthermore, Tables 11 and 12 illustrate the substantial effect of adopting the concept of "child's best interests" on both birth and marriage rates. Increased government intervention in marital affairs appears to deter individuals from both marrying and having children.

Specifications 14 to 16 reveal negative correlations between the establishment and implementation of the "Marital Rape" institution and marriage and birth rates, as well as with property rights protection indicators (Economic Freedom) in Specifications 17.1 and 17.2. Strong governmental regulation of spousal relations suggests potential challenges to individuals' property rights.

While our findings provide compelling evidence of correlations between welfare state policies and family crisis indicators, further research, particularly microeconomic examinations of sample families, is warranted to elucidate these effects more comprehensively. Although our study operates within a cross-country paradigm,

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susceptible to critiques of cross-country regressions, the data strongly suggests a significant correlation between current family crisis indicators—such as declining birth rates among law-abiding, educated individuals with civic engagement—and policies commonly associated with the welfare state expansion.

VI. CONCLUSIONS

Our paper delves into the intricate web of incentives and relationships within families, revealing the encroachment of governmental intervention on these natural dynamics. The machinery of intra-family ties is disrupted as government actions substitute organic incentives and connections with artificially constructed ones. Voluntary care from morally and religiously motivated parents towards their children, as well as the reciprocal care of grown children towards their elderly parents, has been burdened and partially supplanted by compulsory pension insurance, among other interventions. Moreover, the advantages stemming from the natural division of labor between men and women are eroded.

Based on the available data, one cannot dismiss the hypothesis that government actions altered the trajectory of family development throughout the twentieth century. The motivation for governmental intervention, as articulated by Niskanen (1971) and Jasay (1985), lies in the expansion of discretionary power wielded by government officials when more individuals become financially and administratively dependent on big government. The power to intervene "in the best interests of the child" undermines the respect children hold for their parents and sours parent-child relationships, potentially prompting parents to shirk their natural responsibilities.

The increasing awareness of family fragility and the likely consequences of divorce diminishes men's loyalty and responsibility to their families, prompting some to shun the role of breadwinner and driving abandoned women into the labor force. The legal and cultural impact of concepts like "marital rape" and "child protection" in the "best interest of the child" warrants further investigation, particularly regarding their implications for legal culture (Baskerville, 2007; Yanovskiy, Socol, 2023) human rights protection, birth rates, and divorce rates among law-abiding populations in established democracies.

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These institutional shifts undermine parental incentives to have children and shoulder corresponding responsibilities. The ramifications of the family crisis extend beyond demographics to encompass economic and political spheres. It jeopardizes the reproduction of law-abiding, educated working-age populations, hindering economic development and impeding the efficient functioning of society in the long term. Additionally, it undermines the social fabric and weakens civil society.

While the policy advice may seem straightforward in terms of legislative action, politically implementing measures to restore full responsibility for families and children presents significant challenges. Yet, amidst these obstacles, there remains a natural human desire to build and cherish families alongside a demand for freedom. In certain circumstances, this may lead individuals to embrace Frederic Bastiat's (1850) counsel: "Let us finally put Freedom to the test — Freedom, which is an act of faith in God and in his work."

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